

OpaBiz Practical Guide — Guide I • Florida Edition

Form Your **LLC** or **Corporation** in Florida

Filings, licenses, and basic structure for your new business, explained step by step.



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Introduction

Congratulations! If this guide made it into your hands, it's because you're already taking the step of forming your company, or you're already in the process that follows registering it with the State. This guide exists to walk you through that path: what it means to form a company in Florida, what steps it really involves, and what you need to keep in mind to keep your business in compliance with the State.

We're not going to fill it with business theory or generic motivation. We'll go straight to what you need to know: names, paperwork, deadlines, costs, and the decisions that actually matter. And for every topic that tends to raise questions, we'll walk you through a simple example, not just the technical definition.

This guide is your starting point, but you don't have to walk the road alone. If a question comes up at any point, our team is a message away: write to us on WhatsApp and a specialist will respond directly. If you'd rather talk in person, schedule a free appointment and we'll guide you live; we can even complete the formation of your LLC, Corporation, or any other service you need, on your behalf. And if you're looking for a quick answer while browsing the site, Claudia, our virtual assistant, is available 24 hours a day to help you on the spot.

Are you ready to formalize?

Not everyone needs an LLC or a Corporation from day one. Before spending time and money on the process, ask yourself these three questions:

- **Do you already have paying customers, or are you about to?** If you're still validating the idea, it can wait. If you're already billing, every month without legal protection is a month of unnecessary personal risk.
- **Are you signing contracts, renting space, or hiring people?** Any one of these is a clear sign you need an entity separate from yourself.
- **Are you worried that a problem with the business could affect your personal assets** (your home, your car, your savings)? That is, in short, the number-one reason the LLC exists.

If the answer to any of these questions is yes, it means you need to formalize your business.

Why form a company?

When you operate as an individual (with no formal entity), you and your business are, legally, the same thing. If the business owes money, or someone sues it, they come after you directly, including your personal assets.

Forming an LLC or Corporation creates a real legal separation between you and the business. The three main reasons people formalize:

1. **Personal asset protection.** This is the most important reason. If your business faces a lawsuit or a debt, generally only what belongs to the business is at stake, not your home or personal savings.
2. **Credibility.** A bank, a large supplier, or a corporate client trust "Acme LLC" faster than a person operating under their own name.
3. **Tax advantages.** Depending on how you structure your entity, you may access deductions and tax treatments that don't exist for an individual without an entity.

Consider this case: you run a catering business from home and bill on your own, with no entity. A client gets food poisoning at an event and sues you. Since there's no legal separation, the lawsuit can reach your personal bank account and even your home. Had you formed an LLC before that event, the claim would normally be limited to the business's assets.

Types of entities that exist

Before comparing LLC vs. Corporation, it's worth seeing the full picture:

- **Sole Proprietorship:** requires no formation filing at all. It's what you already have if you're billing on your own without registering anything. Zero legal protection.
- **Partnership:** the same as the point above, but with two or more people. It also doesn't separate the owners' personal assets from the business.
- **LLC (Limited Liability Company):** a formal entity that does separate your personal assets from the business, with simple, flexible management.
- **Corporation:** a more structured formal entity, designed for businesses seeking outside investors or eventually going public.

For the vast majority of small and mid-sized businesses, the real conversation is between LLC and Corporation. See step 2 below for the full comparison between LLC, C-Corporation, and S-Corp.

Why Florida?

Florida is one of the most popular states in the country to form a company, and it's no accident:

- **No state income tax**, either for individuals or for most pass-through business structures.
- **Competitive formation fees** compared to states like California or New York.
- **Fast filing process** with the State, with an expedited option if you need your company formed within a few days.
- **You don't need to live in Florida or be a U.S. citizen** to form an LLC or Corporation here. It's one of the reasons Florida attracts so many foreign entrepreneurs every year.

If you live outside Florida and form your company here, in some cases you'll also need to register it as a "foreign LLC" in your own state if you're going to operate there physically. That's a separate process we cover in Guide II of this series, about ongoing compliance.

The process, step by step

1. Choose your company name

The name must meet a few rules before it can be registered:

- It must include the matching designator: **LLC, L.L.C.**, or **Limited Liability Company** for an LLC; **Inc., Corp., Corporation**, or **Incorporated** for a Corporation.
- It cannot be identical or "confusingly similar" to one already registered with the State.
- Certain words are restricted or require special authorization (for example "Bank," "Insurance," "University").

Company name vs. trademark: these are two different things. Registering your company name with the State gives you the right to use that name as a legal entity in Florida, but it does **not** give you nationwide trademark protection. If you want to protect your name or logo as a trademark (so no one else can use it in any state), that's a separate federal filing, with the U.S. Patent and Trademark Office.

2. Choose your entity type

When someone says "Corporation," they almost always mean a **C-Corporation**, which is the default type of corporation. **S-Corp is not a separate entity type: it's a tax election** applied to an LLC or a C-Corp that's already formed.

	LLC	C-Corporation	S-Corp (election)
Personal asset protection	Yes	Yes	Yes
How taxes are paid	Pass-through	The company pays corporate tax, and then you pay again on what you withdraw ("double taxation")	Pass-through
Management flexibility	High, few formalities	Requires directors who meet formally and keep written records of their decisions (minutes)	Depends on the underlying entity
Limits	None relevant	None	Maximum 100 shareholders, all must be U.S. citizens or residents
Best for	Most small and mid-sized businesses	Businesses seeking outside investors or going public	Businesses with steady profits looking to save on self-employment tax

What does "pass-through" mean? It's the simplest way to pay taxes: the company itself doesn't pay tax on the profit; that profit "passes straight through" to you, and you report it on your own personal tax return, as if it were just another form of income. This is what both the LLC and the S-Corp do by default.

The C-Corp works differently: the company pays tax on its profits first, and if it then pays you a dividend as the owner, you pay tax again on that dividend on your personal return. That's why it's called "double taxation": the same money gets taxed twice,

once at the company level and once at the personal level.

Imagine you open an auto repair shop. You want simplicity, no board meetings or minutes. An LLC gives you the legal protection you need without the administrative burden of a corporation. That's the typical LLC case.

Now imagine instead you have a tech startup and plan to raise venture capital funding next year. Institutional investors almost always require a C-Corp, so you form a C-Corp from day one to avoid having to convert the structure later.

Back to the auto repair shop: after two years, your LLC is now earning \$60,000 a year in net profit. Without the S-Corp election, you pay self-employment tax (about 15.3%) on all of that profit. With the S-Corp election, you're assigned a reasonable salary (say \$35,000, on which you do pay self-employment tax like any wage) and the rest (\$25,000) is paid out as a **distribution**: a withdrawal of company profit, different from a salary, which doesn't pay that additional tax. The result: you save several thousand dollars a year compared to paying self-employment tax on the full amount. **Important note:** if you were not a U.S. citizen or resident, you couldn't elect S-Corp status; that option is reserved only for your LLC or C-Corp.

Eligibility requirements to elect S-Corp status. Not every LLC or C-Corp can do this. You must meet all of the following: - Maximum of 100 shareholders or members. - All owners must be individuals who are U.S. citizens or residents (another company can't be an owner, nor can a non-resident foreigner). - Only one class of stock is allowed (all owners with the same economic rights, though voting rights can vary).

How the S-Corp election is filed. You file Form 2553 with the IRS, and the deadline matters as much as the filing itself: you must file it no later than two months and fifteen days after the start of the tax year in which you want the election to take effect. If you file after that date, the election only applies starting the following tax year, not the current one.

What this means in practice, not just on paper: by electing S-Corp status, you commit to paying yourself a reasonable salary for your work in the company (processed as formal payroll, with its own withholdings), and only the rest of the profit is withdrawn as a distribution. This means keeping payroll records you didn't need before, and the IRS does check that the salary is reasonable for your industry, not an artificially low amount just to save on taxes.

If you're still unsure which one is right for you, you can write to us at OpaBiz.com and we'll help you decide, at no cost and no obligation.

3. Appoint a Registered Agent

What it is. This is the person or company with a physical address in Florida (not a P.O. Box, it has to be a real street address) authorized to receive legal documents and official notices on behalf of your company. Think of it as your business's "official mailbox" with the State and with any court. Every business formed in Florida must appoint one from the moment of initial filing, without exception, and keep it active for as long as the company exists.

Example: imagine a client sues your company. The legal document notifying the lawsuit ("service of process") is delivered physically to your Registered Agent's address, not by email or phone. If no one receives it there, the court can automatically rule against you for failing to respond in time, even if you had a good defense and never even knew about the lawsuit.

Options, and their pros and cons:

- **Being your own agent.** Pro: you save the annual cost of the service. Con: you must be physically available at that address Monday through Friday, 9:00 a.m. to 5:00 p.m., 365 days a year, and your personal address becomes public in the State's registry.

- **Hiring a Registered Agent service.** Pro: your personal address stays private, and it doesn't depend on you being physically present every business day of the year. Con: it has a recurring annual cost.

Which one is right for you? If you're going to be at that address every business day of the year, during that time window, without exception, you can save the cost. But if you travel often, don't live in Florida, work outside the home, or simply prefer that your personal address not become public, hiring the service solves all of those problems at once.

A detail many people overlook: if you move, go on an extended trip, or stop being available at that address, you're obligated to update the Registered Agent with the State. Forgetting this is one of the most common reasons a company loses its active status without the owner finding out until months later.

[Hire my Registered Agent](#)

4. Define your business address

There are three different addresses that tend to get confused:

- **Principal business address:** where your company actually operates. It doesn't have to be in Florida: it can be in another state or even a foreign country, as long as it's a real physical address, not a P.O. Box.
- **Mailing address:** where you want to receive your mail, which can be different from the one above.
- **Registered Agent address:** the legal address where official documents are received (see the previous step).

Virtual Mailing Address, in depth. This is a real physical address in Florida (not a P.O. Box) that you use as your business and mailing address, paired with a service that scans and forwards the mail that arrives there. You don't need to rent or set foot in a physical office to have one. If you work from home, meet clients in different places, or simply don't want your personal address exposed on invoices, your website, or public records, this is the solution.

Example: imagine you provide consulting services remotely, from home. Without a virtual mailing address, your personal address ends up appearing on your website, on invoices, and potentially in your company's registration. With one, you have a real professional address in Florida for all of that, and your business mail arrives scanned to your email instead of your personal mailbox.

Advantages: protects your privacy (your personal address isn't exposed to the public or your clients), gives a more professional image than using a residential address, and doesn't require renting or maintaining a physical office.

What it does NOT do: it doesn't replace the Registered Agent. These are two different services, even though they're sometimes purchased together: the virtual mailing address is for your general business correspondence, the Registered Agent is specifically who receives legal notices and lawsuits on your behalf.

5. File the formation documents with the State

This is the central step: filing the **Articles of Organization** (LLC) or **Articles of Incorporation** (Corporation) with the Florida Secretary of State. This is the document that officially creates your entity.

We handle filing this process with the State on your behalf, from start to finish: you don't have to deal with forms, portals, or bureaucratic processes on your own. And if a question comes up along the way, our customer service team is

there for you: write to us on WhatsApp any time, schedule a free appointment if you'd rather resolve it live with a specialist, or chat with Claudia, our virtual assistant, available 24 hours a day.

6. Define your internal structure

- **LLC:** can be *member-managed* (the owners themselves run day-to-day operations, most common in small businesses) or *manager-managed* (one or more managers are appointed to run operations, who may own part of the company (partners), or simply be hired to manage without owning anything).
- **Corporation:** has Directors (who make major strategic decisions) and Officers (President, Secretary, Treasurer, who run day-to-day operations).

Imagine you and two partners open a restaurant as an LLC. Since all three of you will be involved in day-to-day operations, you choose member-managed. If instead you had brought in a fourth investor partner who doesn't take part in daily operations, manager-managed would have made more sense, appointing only those who actually operate as managers.

7. Apply for your EIN

What it is. It's the equivalent of a Social Security Number, but for your company: a unique number the IRS assigns to your LLC or Corporation to identify it in every tax and financial matter. You need it to open a bank account, hire employees, file taxes, and in practice, for almost any financial transaction involving your business.

Example: imagine you're billing on your own using your personal Social Security Number, and then you form your LLC. Without an EIN, you can't open a bank account in the company's name, so you end up mixing business and personal money again, exactly what the LLC is meant to prevent.

Advantages: separates your personal tax identity from your business's (less exposure to identity theft involving your Social Security Number), is a de facto requirement for almost any bank or vendor asking for your company's tax ID, and doesn't expire or need to be renewed: once assigned, it's permanent for as long as the entity exists.

What it does NOT do: the EIN doesn't provide any legal protection on its own, it's just a tax identification number. Protection of your personal assets comes from the LLC or Corporation, not the EIN.

Frequently asked questions: - *Do I need to be in the United States or have a Social Security Number to apply?* No. You can apply without being physically in the country and without a Social Security Number, using your ITIN or the IRS's alternate process for foreign applicants instead.

[Apply for my EIN](#)

8. Draft your Operating Agreement

What it is. This is the internal document that sets out how your LLC is managed and divided: who owns what percentage, how profits are split, who makes which decisions, and what happens if a partner wants to leave or the company dissolves. Unlike the Articles of Organization, this document is not filed with the State, it stays in the company's own records. Florida doesn't require it by law to operate, but most banks do ask for it to open a business account.

Example: imagine two partners, one puts in 60% of the initial capital and the other 40%. Without an Operating Agreement, if they later disagree over how to split an unexpected profit or what happens if one wants to sell their share, there's nothing signed to resolve it the way both of them expected, everything falls back to the state's default law.

What it should include, at a minimum: each member's ownership percentage and capital contributions, how profits and losses are split, who makes which decisions and how voting works, what happens if a member wants to leave or sell their share, the company's dissolution procedure, and how disputes between members are resolved.

Advantages: prevents a future disagreement from being settled by generic state law instead of what you actually agreed to, reinforces the legal separation between you and your company, and most banks require it to open the business account.

What it does NOT do: it doesn't replace registering the LLC with the State or any other compliance obligation, it's an internal document, not a public filing.

[Draft my Operating Agreement](#)

9. Open a business bank account

With your entity formed, your EIN, and your Operating Agreement (if you have partners), you can now open a bank account in the company's name.

Banking Resolution, in depth. This is a short document that formally authorizes one or more specific people to open and manage the account on behalf of your LLC or Corporation. Like the Operating Agreement, it's not filed with the State, it's for the bank's use. Many banks ask for it as proof of exactly who is authorized to sign and operate the account, especially if your company has more than one owner or more than one officer.

Example: imagine an LLC with two partners. Without a Banking Resolution, when they go to the bank to open the account, there's nothing signed clarifying whether both must sign every transaction, or whether one alone can operate the account without the other. The Banking Resolution settles that question before it becomes a problem.

Advantages: speeds up opening the account, avoids back-and-forth with the bank asking for clarification, and creates a clear record of who's authorized to operate the account.

What it does NOT do: it doesn't replace the Operating Agreement. The Operating Agreement governs how the company is run overall; the Banking Resolution is specific to authorizing the bank account.

[Request my Banking Resolution](#)

10. Local and county licenses

What it is. The Local Business Tax Receipt, despite the name, is not a tax on your profits: it's the permit your county (and sometimes your city too) requires to legally operate a business in that jurisdiction. It used to be called an "Occupational License," and although the name changed, the function is the same. Almost any business that physically operates in Florida needs it, regardless of having formed your LLC or Corporation at the state level: these are two completely separate filings and both are required.

Example: imagine you open a physical location in Miami-Dade. In addition to having formed your LLC with the State, you need the county's Local Business Tax Receipt, and in some cases also a city one if your location falls within the limits of a municipality with its own requirement.

Advantages: keeps you compliant for inspections and local enforcement, and many landlords and corporate clients ask for it as proof that your business operates legally before signing a contract.

What it does NOT cover: it doesn't replace any license specific to your industry. Restaurants, contractors, beauty salons, and other regulated fields need their own specific licenses on top of this one.

How it's filed: you apply directly with your county's tax office (and your city's, if applicable), and it's renewed every year.

[Apply for my Local Business Tax Receipt](#)

11. Sales Tax registration, if it applies

What it is. This is the registration with the Florida Department of Revenue (a different agency from the one that registers your company) that authorizes you, and requires you, to charge your customers sales tax on taxable products or services, and to remit that money to the State periodically. If you sell physical products, rent commercial property, or provide certain specific services subject to tax in Florida, you need it. If your business is purely professional services, it probably doesn't apply, but it's worth confirming before your first sale.

Example: imagine you open an online store selling physical products to customers in Florida. You need to register, charge the applicable tax on each sale, and remit it to the State periodically. If instead you only offer business consulting without selling any physical product, it most likely doesn't apply to you.

Advantages: lets you operate within the law and avoid fines and interest, and with the registration you can buy your inventory from suppliers without paying sales tax yourself (through a resale certificate), since that tax is only charged on the final sale to the customer.

Something to keep in mind: the rate isn't a single number: Florida has a base state rate, and most counties add a local surtax on top. The correct rate depends on where the sale takes place.

How it's filed: you register directly with the Florida Department of Revenue, and once registered you must file and remit the tax you collected at the frequency the State assigns you (monthly, quarterly, or annually, depending on your sales volume).

[Register for my Sales Tax](#)

12. If you are a foreigner or non-resident

You don't need to be a U.S. citizen or resident to form an LLC or Corporation in Florida. The main difference is in the tax number: if you don't qualify for a Social Security Number, you apply for an **ITIN** instead.

ITIN, in depth. This is the tax number the IRS assigns to a person who needs to file taxes in the United States but doesn't qualify for a Social Security Number. It shouldn't be confused with the EIN: the EIN identifies your company, the ITIN identifies you as a person with the IRS. If you're an owner (in part or in full) of an LLC formed in Florida and don't have a

Social Security Number, you need an ITIN to report the profit that flows to you from the company on your own personal tax return (remember: the LLC is "pass-through," that profit flows straight to your personal return).

Example: imagine you live outside the United States and form an LLC in Florida to sell products online. The LLC itself gets its EIN without any issue. But when it comes time to report the profit that belongs to you as the owner, you can't do it without a personal tax number, and since you don't qualify for a Social Security Number, that number is the ITIN.

Advantages: lets you meet your personal tax filing obligation without needing a Social Security Number, and it's the same number many banks require to open certain accounts in your name.

What it does NOT do: it doesn't authorize you to work in the United States or give you any immigration status, and it doesn't make you eligible for Social Security benefits or tax credits reserved for those who do have an SSN.

How it's filed: you apply with the IRS, attaching proof of identity and of your foreign status, generally along with the tax return where it will be used for the first time.

A detail many people overlook: the ITIN expires if it's not used on a tax return for three consecutive years. If you haven't filed in a while, it's worth confirming your ITIN is still active before assuming you can use it.

[Apply for my ITIN](#)

13. If you want to operate under a different name (DBA)

What it is. This is the permit to publicly operate under a name different from your company's legal name, something like an official "also known as." Your LLC might legally be named "Rodriguez Enterprises LLC" with the State, while the public knows your coffee shop as "Café Sunrise": the DBA (*Doing Business As*, or Fictitious Name) is the filing that creates that second legal identity. You need it as soon as you start billing, putting up signs, or advertising under a name different from the one you registered: Florida requires registering it before you use that name publicly, not after.

Example: besides the coffee shop case, imagine you have a single general services LLC ("Garcia Holdings LLC") but operate two different businesses under it: a residential cleaning brand and a landscaping brand. With two DBAs registered under the same LLC, you avoid creating and maintaining two separate entities just to have two business names.

Advantages: lets you use a more appealing business name without creating a new entity, one LLC can have several DBAs if it operates several lines of business, and the cost and process are much simpler than forming an additional entity.

What it does NOT do: it doesn't create any new legal protection (your liability is still that of the underlying LLC or Corporation, the DBA is just a name), and it doesn't give you nationwide exclusivity over the name or trademark protection: for that you need a federal trademark, a separate filing.

How it's filed: before registering the name, you must publish a notice of intent in a newspaper in the county where your business's principal address is located (required by Florida law). After that, the DBA is registered with the State. You don't need to submit proof of that publication, but by filing the registration you certify that you already did it. It's valid through December 31 of the fifth year after registration.

Frequently asked questions: - *If I already formed my LLC, do I still need a DBA?* Only if you're going to operate under a name different from the one you registered. - *Does a DBA protect my name so no one else can use it?* No. It lets you use it, but

it doesn't legally stop another business from using a similar name unless you have a registered trademark.

[Get my DBA](#)

A note about the BOI / FinCEN report

What it is. BOI stands for *Beneficial Ownership Information*: a federal report certain companies were required to file with FinCEN, the Treasury agency that fights money laundering, identifying who the real owners behind the company are.

Why it causes so much confusion. This law changed more than once in a short period: first it was required of the vast majority of U.S. companies, then lawsuits and court orders paused it, and today it's limited only to certain foreign companies registered to operate in the country. Most business owners who ask about this are actually already exempt, but since the topic got so much media and social attention, it keeps raising questions.

Does it apply to you? If you formed your LLC or Corporation within the United States (which is the case for the vast majority of our clients), you're exempt today. It could only apply to you if your company was originally registered in another country and later registered to operate in the United States.

One thing to watch out for: since the topic got so much media coverage, third-party services also popped up charging for "mandatory BOI compliance" for companies that are actually already exempt. Before paying anyone for this filing, confirm first whether it actually applies to you.

Our recommendation: since this is an area that has changed more than once and could change again, don't assume that what you read a while ago is still current, it's always worth confirming the current status before acting.

How much it costs to form your company

Item	Cost
State formation fee (LLC)	\$125
State formation fee (Corporation)	\$70

These are the only fixed fees charged by the State of Florida, and you pay them no matter who forms your company with you. Everything else depends on the level of help you need, so to see the current prices for our packages and services, the best place is to visit us directly at opabiz.com/servicios. Would you rather have us guide you through the process? Check the options at the start of this guide.

What a complete formation should include

Beyond the state filing itself, a properly done formation typically covers: the State filing, the Registered Agent, the EIN, the Operating Agreement, and the first year of compliance handled. Doing this on your own, piece by piece, usually ends up costing more in time (and sometimes in money too) than handling it all together from the start.

At OpaBiz.com we handle all of this in a single step, without you having to piece it together on your own.

And if you also need more than one of the services we covered in the step-by-step process (for example, Operating Agreement + EIN, or Registered Agent + Annual Report), it's almost always worth checking our package options instead of buying them separately. The bundles at opabiz.com/servicios group together the services most often requested together, at a discount compared to the individual price.

Business insurance

Forming your entity protects your personal assets from business debts and lawsuits, but it doesn't replace insurance. Two to keep in mind:

- **General Liability:** covers third-party claims for damage or injury related to your business. It's not legally required in most cases, but many corporate clients and landlords require it before signing a contract.
- **Workers' Compensation:** in Florida, this is **legally required** as soon as you hire your first employee (with some exceptions depending on the industry). It's not optional if you have staff on payroll.

Is it worth getting insurance from day one, even if you work alone? If you have no employees and no physical location where you receive clients, you can probably wait. But if you're going to serve the public in person, or sign contracts with larger companies, they'll almost always ask for it before starting to work together.

Next financial and operational steps

Once the entity is formed, these are the natural next steps, without needing to dive deep into all of them from day one:

- **Business bank account:** the first step, already covered above.
- **Corporate credit card or line of credit:** helps separate personal expenses from business ones and build credit history for the company.
- **Accounting software:** even something simple keeps your billing and income organized from the start, instead of trying to reconstruct everything the following March.
- **Payment gateway:** if you're going to charge online, you need a way to accept cards or transfers directly on your website or point of sale (for example, Stripe). At OpaBiz.com we can guide you through the initial setup when you form your company with us.
- **Business phone:** separating your personal number from your business one is more professional and protects your privacy. The simplest free option is Google Voice, your own number linked to your cell phone at no cost. If you're looking for something more robust, with automated voicemail and multiple extensions, there are **VoIP** providers (internet-based telephony: your line runs through an app or a device connected to the internet, instead of a traditional physical line) built for small businesses.

Is a 1-800 number worth it? It depends on who you're selling to. If you have a local business (a coffee shop, a hair salon), you don't need one: your customers are from the neighborhood and a local number builds more trust. But if you sell online nationwide, or provide remote services, a 1-800 number conveys an "established company" feel from day one. You can get one through a VoIP provider (the same ones mentioned above), which lets you pick an available toll-free prefix (800, 833, 844, 855, 866, 877, or 888), usually with a monthly cost plus a per-minute charge for incoming calls.

Common mistakes when forming a company

- **Mixing personal and business funds** (for example, paying household expenses from the business account, or vice versa). This is the fastest way to lose the legal protection the LLC gives you: if a court sees that you didn't treat the company as something separate from yourself, it can decide it shouldn't be treated as separate for purposes of a lawsuit either, and reach your personal assets anyway. Lawyers call this "piercing the corporate veil."
 - **Not having an Operating Agreement**, even as a single-member owner. Without one, any future dispute is settled under the state's generic default law, not what you actually want.
 - **Ignoring the EIN** and using your personal Social Security Number for everything, which mixes personal and business again.
 - **Choosing a name without checking availability first**, which delays filing if the State rejects it.
 - **Not budgeting for annual compliance.** Forming the company is the first step, not the only one; there are obligations that follow afterward (we cover them in Guide II of this series).
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What about after forming your company?

Forming your LLC or Corporation is the first step, but not the only one. Once your company is active, the obligations that keep it that way begin: filings with deadlines that don't offer a second chance, and some silent mistakes that can lead the State to dissolve your company without you finding out until months later.

That's why, as soon as you complete your formation with OpaBiz.com, we send you, at no additional cost, **Guide II** in this series: *Keep Your Company in Good Standing in Florida*. There, among other things, we cover when your first Annual Report is due, what happens if you don't file it on time, how to avoid losing your Registered Agent without realizing it, and the full list of mistakes that most often cost a business owner their active status.

For now, let's focus on completing the formation.

Your formation checklist

- ☐ Check name availability
- ☐ Choose LLC or Corporation
- ☐ Appoint a Registered Agent
- ☐ Define your business and mailing address
- ☐ File Articles with the State
- ☐ Define internal structure (member/manager or directors/officers)
- ☐ Apply for EIN
- ☐ Draft Operating Agreement
- ☐ Open a business bank account
- ☐ Check if you need a local license
- ☐ Check if you need a Sales Tax registration
- ☐ Check if you need a DBA (different business name)
- ☐ Consider business insurance if it applies

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Glossary

- **Articles of Organization / Articles of Incorporation:** the document you file with the State to formally create your LLC or Corporation.
- **Registered Agent:** a person or company with a physical address in Florida, authorized to receive legal documents on your company's behalf.
- **EIN:** federal Employer Identification Number, issued by the IRS.
- **ITIN:** a tax number that's an alternative to a Social Security Number, for those who don't qualify for one.
- **Operating Agreement:** an internal document that defines how the LLC is managed and divided.
- **Member-managed / Manager-managed:** who runs the day-to-day of an LLC: the owners themselves, or appointed managers.
- **C-Corp:** the default type of corporation.
- **S-Corp:** a tax election (not an entity type) available to qualifying LLCs and C-Corps.
- **BOI / FinCEN:** the federal beneficial ownership report; today it doesn't apply to most companies formed within the U.S.
- **DBA (Doing Business As):** a business name different from the entity's registered legal name.
- **Sales Tax Permit:** the registration to collect and remit sales tax to the State.